

25STCV11454 25STCV11454

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 25STCV11454 Hearing Date: July 1, 2026 Dept: 406

FRANCISCO ADAN LOPEZ,

Plaintiff,

v.

NISSAN NORTH AMERICA,
INC.,

Defendant.

Case No.: 25STCV11454

Hearing Date: July 1, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel initial
disclosures

BACKGROUND

On April 18, 2025, Plaintiff

Francisco Adan Lopez filed this action against Defendant Nissan North America,
Inc. for violations of the Song-Beverly Act, breach of warranty, and fraud.

On April 8, 2026, Plaintiff filed

the instant motion to compel initial disclosures. Defendant filed an opposition on June 17, 2026.

LEGAL STANDARD

Code of Civil Procedure sections 871.20 to 871.30 set forth specific rules applying to actions for restitution or replacement of motor vehicles under the Song-Beverly Act. With regards to discovery, the Code provides that “[w]ithin 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., § 871.26(b).) Subdivisions (f) and (g) specify the documents and information that the plaintiff must provide, while subdivision (h) specifies the documents that the defendant must provide. Section 871.26 sets forth a schedule of sanctions which “shall” be imposed “[u]nless the party failing to comply with this section shows good cause.” (Id., § 871.26(j).)

DISCUSSION

Defendant filed its answer on August 12, 2025. Defendant did not complete its initial disclosures within 60 days of that date. However, the parties agreed to toll initial disclosures pending informal resolution. (Sweeney Decl. ¶ 6.) After Plaintiff filed this motion, Defendant served its initial disclosures on June 12, 2026. (Id., ¶ 10.) Defendant avers that it has served all required disclosures under the code. (Id., ¶ 13.)

Because Defendant has satisfied the initial disclosure requirements, the motion is moot. Sanctions are not warranted because Defendant has demonstrated good cause. Defendant reasonably believed that initial disclosures were tolled during informal negotiations.

CONCLUSION

Plaintiff's motion to compel initial disclosures is DENIED. Sanctions are denied.